

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.
★ JUL 27 2011 ★

 **ORIGINAL**

GARY CHARLES,

BROOKLYN OFFICE
Plaintiff,
COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE SERAFIN
RESTO, tax # 937360, SERGEANT CHRISTOPHER
CHAN, tax # 930417, JOHN AND JANE DOES 1-5,

CV 11 - 3622 

Jury Trial Demanded

Defendants.

MATSUMOTO, J.

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PRELIMINARY STATEMENT

REYES, M.J.

1. Plaintiff bring this civil rights action against the City of New York and several New York City Police Officers in connection with two separate arrests, one in Brooklyn and one in Manhattan, alleging that defendants violated his rights under 42 U.S.C. § 1983, the Fourth Amendment to the United States Constitution and New York state law. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest, assault, battery and vicarious liability which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. A notice of claim was duly filed with the City of New York within 90 day of the incidents that are the subjects of this lawsuit, more than 30 days have elapsed since such filing and the City has not offered to settle plaintiff's state law claims.

5. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

PARTIES

6. Plaintiff is a resident of Brooklyn.

7. The City of New York is a municipal corporation organized under the laws of the State of New York

8. Detective Serafin Resto is a member of the New York City Police Department ("NYPD") who was employed out of Narcotics Borough Brooklyn South on May 17, 2011. The defendant was acting under color of state law and in his capacity as a member of the NYPD at all relevant times. The defendant is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendant is sued in his individual capacity.

9. Sergeant Christopher Chan is a member of the NYPD who was employed out of the Midtown North Precinct on June 12, 2011. The defendant was acting under color of state law and in his capacity as a member of the NYPD at all relevant times. The defendant is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendant is sued in his individual capacity.

STATEMENT OF FACTS

A. Incident on May 17, 2011

10. On May 17, 2011, at approximately 4:00 p.m., plaintiff was on his friend's porch at the friend's house located at 1233 Troy Avenue in Brooklyn.

11. A police van arrived on the scene and Detective Resto and two other officers, one male and one female, exited the van.

12. Detective Resto pointed his gun at plaintiff, threatened to kill plaintiff and handcuffed plaintiff excessively tight causing him to suffer pain and bruising.

13. None of the officers complied with plaintiff's requests to loosen the cuffs.

14. Detective Resto put his hands inside plaintiff's pants and underwear to search for contraband, found nothing illegal and then knocked plaintiff down to the ground while plaintiff was handcuffed.

15. After the officers falsely arrested plaintiff, they held the tightly handcuffed plaintiff in a van for several hours and would not allow him to use a restroom.

16. Plaintiff was eventually taken to the 67th Precinct where an unidentified officer illegally strip searched plaintiff down to his underwear.

17. Nothing illegal was found on plaintiff

18. Plaintiff was released from the precinct at approximately 10:30 p.m. after Resto issued plaintiff a criminal summons falsely charging plaintiff with disorderly conduct.

19. Plaintiff appeared in court on the return date and was told that the summons had never been docketed.

20. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered an unlawful detention, physical injuries, emotional distress, fear, anxiety and humiliation.

B. Incident of June 12, 2011

21. On June 12, 2011, at approximately 6:00 p.m., inside a subway station in the vicinity of 5th Avenue and 44th Street in Manhattan, Sergeant Christopher Chan and approximately two other New York City Police Officers arrested plaintiff for no reason.

22. Sergeant Chan, who was in plainclothes, pointed his gun at plaintiff and ordered plaintiff to get against the wall and then on the ground.

23. One of the other officers handcuffed plaintiff excessively tight causing him to suffer pain and bruising.

24. None of the officers complied with plaintiff's requests to loosen the cuffs.

25. Eventually, plaintiff was taken to Midtown North Precinct where he was interrogated.

26. On June 13, 2011, at approximately 4:00 a.m., plaintiff was released from the precinct without being charged.

27. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered an unlawful detention, physical injuries, emotional distress, fear, anxiety and humiliation.

FIRST CLAIM

(FALSE ARREST)

28. Plaintiff repeats the foregoing allegations.

29. On May 17 and June 12, 2011, plaintiff did not commit a crime or violation.

30. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

31. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

SECOND CLAIM

(ILLEGAL STRIP SEARCH)

32. Plaintiff repeats the foregoing allegations.

33. The two strip searches of plaintiff on May 17, 2011 were illegal because plaintiff had not committed a crime and because no officer had reasonable suspicion to believe that plaintiff was hiding illegal items under his clothes.

34. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for illegally strip searching him.

THIRD CLAIM

(UNREASONABLE FORCE)

35. Plaintiff repeats the foregoing allegations.

36. Defendants uses of force upon plaintiff on May 17 and June 12, 2011 were objectively unreasonable and caused plaintiff pain and injury.

37. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for using unreasonable force.

FOURTH CLAIM

(MONELL CLAIM AGAINST THE CITY OF NEW YORK)

38. Plaintiff repeats the foregoing allegations.

39. The City of New York is a “person” within the meaning of 42 U.S.C. § 1983.

40. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

41. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

42. Several members of the NYPD have been arrested and convicted of crimes for making false allegations and for corruption.

43. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

44. In 2011, former NYPD Officer Jerry Bowen was convicted of murder and attempted murder while under indictment for corruption.

45. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

46. Detective Resto was sued for civil rights violations in *Baker, et al., v. City of New York, et al.*, 10 Civ. 0760 (S.D.N.Y.), which the City settled in March 2011.

47. Sergeant Chan is presently being sued for civil rights violations in *Garbini, et al. v. City of New York, et al.*, 05 Civ. 1565 (S.D.N.Y.).

48. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them.

49. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

FIFTH CLAIM

(FALSE ARREST UNDER STATE LAW)

50. Plaintiff repeats the foregoing allegations.

51. On May 17 and June 12, 2011, plaintiff did not commit a crime or violation.

52. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

53. Accordingly, the individual defendants are liable to plaintiff under New York state law for false arrest.

SIXTH CLAIM

(ASSAULT)

54. Plaintiff repeats the foregoing allegations.

55. Defendants' searches of and uses of force upon plaintiff placed him in fear of imminent harmful and offensive physical contacts which injured him.

56. Accordingly, defendants are liable to plaintiff under New York state law for assault.

SEVENTH CLAIM

(BATTERY)

57. Plaintiff repeats the foregoing allegations.

58. Defendants' searches of and uses of force upon plaintiff were offensive and nonconsensual physical contacts which injured him.

59. Accordingly, defendants are liable to plaintiff under New York state law for battery.

EIGHTH CLAIM

(VICARIOUS LIABILITY CLAIM AGAINST CITY OF NEW YORK)

60. Plaintiff repeats the foregoing allegations.

61. The individual defendants were acting within the scope of their employment as members of the NYPD when they committed the torts alleged herein.

62. Accordingly, the City of New York is vicariously liable to plaintiff for false arrest, assault and battery.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: July 27, 2011



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